

24NWCV02325 24NWCV02325

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Case Number: 24NWCV02325 Hearing Date: August 18, 2026 Dept: P

BETH ITNYRE, ET AL. v.

CREDIT UNION OF SOUTHERN CALIFORNIA, ET AL.

CASE NO.: 24NWCV02325

HEARING: 08/18/2026 @

9:30 AM

#6

TENTATIVE ORDER

Counsel Paul Rolf Jensen's motion to vacate void order is
DENIED.

Moving party to give notice.

Plaintiffs' counsel Paul Rolf Jensen (Counsel) moves to
vacate the Court's Order on November 5, 2025.

Background

This is a premises liability action. On July 31, 2024,
Plaintiffs Beth Itnyre (Mrs. Itnyre) and Terry Itnyre (Mr. Itnyre) filed this
action against Defendant Credit Union of Southern California (CUSC) and Does 1
to 20. On December 11, 2024, Plaintiff filed a Notice of Mr. Itnyre's Death. On
December 30, 2024, Mrs. Itnyre filed a first amended complaint against CUSC,
Defendant Rodney Rivani, Retail Centers Leasing Group, 15175 Whittier LLC, and

Does 6-9 (Landlord Defendants) and RDCS Service Inc. (RDCS) and Does 10-15 (Contractor Defendants). On October 6, 2025, the Court granted Plaintiff's motion to substitute Mark Itnyre (Plaintiff) as the successor-in-interest to Mrs. Itnyre following Mrs. Itnyre's passing on August 9, 2025. On October 28, 2025, Plaintiff filed a second amended complaint (SAC).

The SAC alleges Mrs. Itnyre, who was over 90 years old at the relevant time, was a customer of CUSC and visited the CUSC branch. The CUSC branch, located at 15175 Whittier Boulevard, Whittier, California (Subject Premises), was leased from Landlord Defendants. At the Subject Premises, there was construction in progress such that Mrs. Itnyre had to cross a piece of plywood to get to the door. Mrs. Itnyre tripped on the end of the plywood and was injured. The SAC alleges Contractor Defendants were not licensed under California law, or did not obtain required permits for the construction, and Landlord Defendant knew or should have known this, but engaged Contractor Defendants for the construction anyways. The SAC alleges two causes of action for (1) General Negligence against all Defendants and (2) Premises Liability against Landlord Defendants.

On November 5, 2025, the Court, after taking the matter under submission, found RDCS's motions to compel further responses to form interrogatories, special interrogatories, requests for production of documents, and requests for admissions from Mrs. Itnyre moot. (11/5/25 Order.) The Court additionally granted RDCS's request for monetary sanctions in the amount of \$6,277.50 against counsel for Mrs. Itnyre only. (11/5/25 Order.)

On March 19, 2026, the Court denied Plaintiff's motion for reconsideration of the 11/5/25 Order.

On June 12, 2026, the Court granted 15175 Whittier, LLC's motion for summary adjudication as to its causes of action for declaratory relief and express contractual indemnity against RDCS.

Legal Standard

Pursuant to Code of Civil Procedure section 473, subdivision (d), "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

“To determine ‘whether an order [or judgment] is void for purposes of section 473, subdivision (d), courts distinguish between orders [or judgments] that are void on the face of the record and orders [or judgments] that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. “This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment is void.’” (Kremerman v. White (2021) 71 Cal.App.5th 358, 370.) “[E]rror in rendering a judgment or order generally falls into two categories: ‘A court can lack fundamental authority over the subject matter, question presented, or party, making its judgment void, or it can merely act in excess of its jurisdiction or defined power, rendering the judgment voidable.’” (Id., at p. 371.)

Discussion

Counsel moves to vacate the 11/5/25 Order on the basis that it is void and entered in excess of statutory authority pursuant to Code of Civil Procedure section 473, subdivision (d). Counsel argues that there was no statutory authorization for the Court to grant sanctions after finding RDCS's discovery motions moot.

In opposition, RDCS first argues that Plaintiff has fabricated authority by misquoting appellate and California Supreme Court decisions. Plaintiff acknowledges the erroneous quotations. (Reply, 2:13-15 [“Plaintiff acknowledges and corrects that citation error. It should not have occurred. But the error does not establish that the authorities were fictitious, that the cases did not exist, or that the motion was fraudulent.”].)

Here, Counsel does not show how the Court lacked fundamental jurisdiction in issuing the 11/5/25 Order. Counsel argues that the Court lacked statutory authority to impose sanctions and therefore “the resulting order is void and subject to vacatur at any time.” (Mot., 4:6-7.) Counsel's arguments and authority confirm that Counsel argues that the 11/5/25 Order is voidable, not void. “When a court has fundamental jurisdiction, but acts in excess of its jurisdiction, its act or judgment is merely voidable.” (People v. American Contractors Indemnity Co. (2004) 33 Cal.4th 653, 660-61.) At no point does Counsel argue that the Court lacked fundamental jurisdiction over the parties

or subject matter. (See *id.*, at p. 1024 [“ ‘Lack of jurisdiction in its most fundamental or strict sense means an entire absence of power to hear or determine the case, an absence of authority over the subject matter or the parties.’”].) Code of Civil Procedure section 473, subdivision (d) requires a finding that the 11/5/25 Order is void, which is not argued here.

Moreover, Counsel's argument also fails on the merits. While Counsel argues that a trial court does not have authority to grant monetary sanctions upon a finding that a discovery motion is moot, Counsel does not cite authority to support this argument. “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

The Court acknowledges that the correct basis for monetary sanctions was Code of Civil Procedure sections 2023.010 and 2023.030, which were noticed as bases for monetary sanctions in the subject motions. The language of the 11/5/25 Order supports this: “The Court finds monetary sanctions warranted against counsel for Mrs. Itnyre on the basis that Mrs. Itnyre had two months before the motions to compel were filed and three months after the motions were filed to provide supplemental responses.” (11/5/25 Order.) However, Counsel's arguments that the Court does not have authority to award monetary sanctions following a moot order are not supported. The Court had discretionary authority under Code of Civil Procedure sections 2023.010 and 2023.030, subdivision (a) to award sanctions for the misuse of the discovery process for the failure to provide discovery responses.

Accordingly, Counsel's motion to vacate void order is
DENIED.